



File No.: EXP202303976

RESOLUTION OF FILE OF PROCEEDINGS

From the actions taken by the Spanish Agency for Data Protection and based on the following

FACTS

FIRST: On February 14, 2023, A.A.A. filed a complaint with entry registration number REGAGE23e00009375353 with the Spanish Agency for Data Protection against B.B.B. ***PARTY.1 (hereinafter, Independent Group) with NIF ***NIF.1, in the ***MUNICIPALITY.1, and "those who may be held responsible."

The reasons for the complaint are as follows:

- The complainant, (...), states that the only councilor and (...) of ***PARTY.1 has disseminated data regarding her registration without her consent.
- In particular, the Independent Group prepared and published a press release under the name "***NOTE.1," in which she is accused of having fraudulently registered in the municipality of *****LOCALITY.1 in order to run for mayor in the upcoming municipal elections, registering at her workplace (...), while it is not true that she lives at this location or in ***MUNICIPALITY.1.
- The publication was made on February 5, 2023, on a blog owned by the Independent Group (**URL.1), on February 6 it was published on the Facebook profile of the Independent Group; and on February 7 in the private Facebook group called "***GROUP.1."
- The complainant states that such publication was sent to the media, although she does not specify which ones and claims to provide evidence of this in document 3, without any document 3 being attached to her complaint.

Along with the notification, the complainant states that she is providing 3 documents, although only the following two documents are provided:

- Publication of the press release on the Facebook profile of the Independent Group.
- Publication of the press release on the blog of the Independent Group.

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Despite the complainant not having provided either the publication in the private Facebook group or the one made in the press referred to as document 3, this Agency has conducted an internet search, collecting both as evidence and attaching them to the file, having found only the publication in a media outlet, (...).

SECOND: After requesting and receiving communication from the Tax Agency regarding the NIF and address of the Independent Group referred to in the complaint on March 27, 2023, in accordance with Article 65.4 of Organic Law 3/2018, of December 5, on Personal Data Protection and the guarantee of digital rights (hereinafter LOPDGDD), the complaint was forwarded to both the aforementioned Independent Group and the Municipality so that both entities could analyze it and inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations.

The transfer made to the Municipality, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), was received on April 4, 2023, as evidenced by the acknowledgment of receipt in the file.

The transfer made to the Independent Group, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP) by certified mail, was returned marked "absent" on April 27, 2023, after two notification attempts, and was not collected from the office after receiving the notice from Correos.

No response has been received from either the Municipality or the Independent Group.

THIRD: On May 14, 2023, in accordance with Article 65 of the LOPDGDD, the complaint was admitted for processing due to the expiration of the maximum period of 3 months from its submission.

FOURTH: However, from the analysis of the evidence collected by this Agency and the documents provided by the complainant, the following should be noted:

- That in none of the 3 publications made by the Independent Group has the address and municipality in which the complainant allegedly resides with her family been published, since the press releases explicitly state that the name of that other municipality "is omitted out of respect but is known," with the news published in the digital newspaper "toledodiario.es" indicating which municipality it is.
- That in none of these publications is it indicated that knowledge of the complainant's recent registration in *****LOCALITY.1 of ***MUNICIPALITY.1 has been obtained because access to the municipal registry data of the Municipality has been made in any way. It is expressly stated that this information has been known because she has publicly stated that she resides in another municipality (...) on multiple occasions, as well as that "her surroundings have told us, as everything is known here."

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The press release published on "toledodiario.es" reflects the publication of the press release by the Independent Group and states that it has requested the ***MUNICIPALITY.1 to open an informational file for false registration, in order to verify that the candidate does not live at the said address. It is confirmed that the Independent Group has published this same request to initiate an informational file on its profile and private group for the Municipality to investigate this matter.

There is no evidence that the Independent Group or its members accessed the data from the municipal register of the Municipality, with the aim of knowing and unlawfully disclosing the personal data of the claimant's address.

LEGAL GROUNDS

I

Competence

In accordance with the functions conferred on each supervisory authority by Article 57.1 a), f), and h) of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR) and as provided in Articles 47 and 48.1 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to resolve these investigative actions.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued in its development and, as long as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Preliminary Issues

According to the provisions of Article 4.2 of the GDPR, which states the following, personal data is understood as: 1) "personal data": any information relating to an identified or identifiable natural person ("the data subject"); an identifiable natural person is one whose identity can be determined, directly or indirectly, in particular by reference to an identifier, such as a name, an identification number, location data, an online identifier, or one or more factors specific to the physical, physiological, genetic, mental, economic, cultural, or social identity of that natural person."

The claimant attributes to the (...) of the Independent Group the publication of the press release in the aforementioned 3 media outlets the commission of what could be considered as two administrative infringements of the current GDPR. In her complaint, she refers to the "unauthorized dissemination of her personal data" and to the "unauthorized handling of the same," since the registration information is

only held by the Municipality, accusing them of having obtained her data (address) from the municipal register.

It is necessary to analyze whether, based on the evidence deduced from the file, we can initiate sanctioning proceedings for the possible commission of these two potential administrative infringements. However, it should be clarified that while the first of them (unauthorized dissemination) could be attributed to the aforementioned (...) of the Independent Group, the second would be attributed, if applicable, to the Municipality itself for not having adopted security measures to prevent the alleged unauthorized access to the register by said councilor.

Next, we analyze the reasons why it is understood that the commission of either of these two infringements has not been substantiated.

III

On the alleged breach of data confidentiality

Letter f) of Article 5.1 of the GDPR advocates the need to respect the Principle of confidentiality of personal data, stating the following: "1. Personal data shall be: (...)

f) processed in a manner that ensures an adequate level of security of personal data, including protection against unauthorized or unlawful processing and against accidental loss, destruction, or damage, by applying appropriate technical or organizational measures ("integrity and confidentiality")." However, the infringement of this principle requires that there has been unauthorized or unlawful processing of personal data, which implies the concurrence of two requirements:

- First, it is necessary that it concerns personal data.

Although it is not stated that the exact address of the claimant has been disclosed, but only the municipality and what could be the approximate address of hers, which is "****LOCALITY.1" of the ***MUNICIPALITY.1, it could be understood that a personal data of the claimant has been provided, since it is information about an "identifiable" natural person. Given that, although the street and number where the claimant is registered are not indicated, this information allows the neighbors of the municipality and anyone who inquires about it to know the exact address referred to, to the extent that it is stated that there is only one pharmacy in that urbanization.

- But secondly, it is also required that the dissemination of this personal data is an "unauthorized or unlawful processing" for the purposes regulated in the legislation.

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That is, there must have been a breach of security of personal data, in the sense expressed in Article 4, paragraph 12 of the GDPR, which defines it broadly as "all breaches of security that lead to the accidental or unlawful destruction, loss, or alteration of personal data transmitted, stored, or otherwise processed, or to the unauthorized communication or access to such data."

In the present case, having analyzed the specific data that has been disclosed and the context in which it occurs, it is understood that this requirement is not met, since, as considered by the jurisprudence of our Constitutional Court and the Court of Justice of the European Union (CJEU), the dissemination would not be unlawful if it concerns a newsworthy fact about a person of general interest, given that the right to information and the freedom of expression of political opinions justify, in this case, the disclosure of the recent registration of the claimant at their workplace during the pre-electoral period.

Our Constitutional Court, in its ruling STC 58/2018 of June 4, states that public authorities, public officials, and public figures or those engaged in activities that involve public notoriety "voluntarily accept the risk that their subjective rights of personality may be affected by criticism, opinions, or adverse revelations and, therefore, the right to information reaches, in relation to them, its highest level of legitimizing effectiveness, in that their life and moral conduct participate in the general interest with greater intensity than that of private individuals who, without a vocation for public projection, are circumstantially involved in matters of public significance, to whom a higher sphere of privacy must consequently be recognized, which prevents granting general significance to facts or conduct that

would have it if referred to public figures.”

The CJEU (Second Chamber) ruling of February 14, 2019, in case C 345/17, *Sergejs Buivids*, mentions various criteria for weighing between the right to respect for privacy and the right to freedom of expression, among which are “the contribution to a debate of general interest, the notoriety of the affected person, the subject of the report, the previous behavior of the interested party, the content, the form, and the repercussions of the publication, the manner and circumstances in which the information was obtained, and its veracity (see, in this regard, the judgment of the ECHR of June 27, 2017, *Satakunnan Markkinapörssi Oy and Satamedia Oy v. Finland*, CE:ECHR:2017:0627JUD000093113, paragraph 165).”

Thus, for a matter to be considered of general interest, of public relevance, it will be so not only because of the person involved but also because of the subject matter to which it refers.

And in the present case, in light of the concurrent circumstances (the claimant's registration at their workplace address, with the registration in a municipality being a condition for being able to stand for election),

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as a candidate in the municipal elections), and considering furthermore that her exact residential address was not published, nor the municipality where she allegedly actually resides, it must be considered without a doubt that the publication was not an unauthorized or unlawful processing that justifies the initiation of a sanctioning procedure for committing an infringement of Article 5.1.f) of the GDPR.

Furthermore, the fact that the Independent Group has requested the initiation of an informational procedure to investigate where the complainant is registered reinforces the fact that its ultimate purpose was to exercise the right to information, confirming a newsworthy fact of interest to all voters in the municipality.

III

On the alleged lack of security measures for processing

Secondly, the complainant claims that there has been “unauthorized handling” by improperly accessing her data through the municipal register, which in terms of data protection would imply the possible commission of an infringement of the provisions of Article 32 of the GDPR by the City Council, since it would mean that it has not fulfilled its responsibility to implement security measures that prevent unauthorized access or handling of the data contained in its municipal register.

Article 32 on “Security of processing” of the GDPR establishes the following:

“1. Taking into account the state of the art, the costs of implementation, and the nature, scope, context, and purposes of the processing, as well as the varying likelihood and severity of risks to the rights and freedoms of natural persons, the controller and the processor shall implement appropriate technical and organizational measures to ensure a level of security appropriate to the risk, which may include, among others:

- a) the pseudonymization and encryption of personal data;
 - b) the ability to ensure the ongoing confidentiality, integrity, availability, and resilience of processing systems and services;
 - c) the ability to restore the availability and access to personal data quickly in the event of a physical or technical incident;
 - d) a process for regularly verifying, assessing, and evaluating the effectiveness of technical and organizational measures to ensure the security of processing.
2. In assessing the appropriateness of the level of security, particular consideration shall be given to the risks presented by the processing of data, in particular as a consequence of the accidental or unlawful destruction, loss, or alteration of personal data transmitted, stored, or otherwise processed, or the unauthorized communication or access to such data.
3. Adherence to an approved code of conduct pursuant to Article 40 or to an approved certification mechanism pursuant to Article 42 may serve as an element to demonstrate compliance with the requirements set out in paragraph 1 of this article.
4. The controller and the processor shall take measures to ensure that any person acting under the authority of the controller or the processor and having access to personal data only processes such

data on instructions from the controller, unless required to do so by Union or Member State law." However, there is no evidence that access to the municipal register has occurred by (...) of the Independent Group or any other person. From the background information in the file, it cannot be inferred that the aforementioned (...) accessed the data from the register, and no evidence has been presented to support this allegation. This evidentiary fact of their responsibility also cannot be inferred from the literal wording of the published news, which does not refer to the respondent having obtained this data from the municipal register, which is consistent with the fact of having initiated an informational procedure before the City Council to investigate the circumstances of the registration. On the contrary, there are indications that support the assertion made by the respondent that the change of registration was a known fact among various inhabitants of the town who knew the complainant, (...), since ***AYUNTAMIENTO.1 is a municipality of XXXX inhabitants according to the latest register published by the National Institute of Statistics, where the complainant may be known due to her business.

V

Conclusion

Therefore, based on the indications in the previous paragraphs, no evidence has been found to substantiate the existence of an infringement within the jurisdiction of the Spanish Agency for Data Protection.

All of this is without prejudice to any subsequent actions that this Agency may carry out, applying the investigative and corrective powers it holds.

Thus, in accordance with the aforementioned, the Director of the Spanish Agency for Data Protection, IT IS AGREED:

FIRST: TO PROCEED TO FILE the present proceedings.

SECOND: TO NOTIFY this resolution to ***AYUNTAMIENTO.1, to the INDEPENDENT GROUP (...), and to the complainant.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure as provided by Article 114.1.c) of Law 39/2015, of October 1, on the Administrative Procedure

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Common of the Public Administrations, and in accordance with the provisions established in articles 112 and 123 of the aforementioned Law 39/2015, of October 1, interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of article 25 and section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in article 46.1 of the aforementioned Law.

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